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NOTE: Where it is feasible, a syllabus (headnote) will be released, as is being done in connection with this case, at the time the opinion is issued. The syllabus constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader. See *United States* v. *Detroit Timber & Lumber Co.,* 200 U. S. 321, 337.

SUPREME COURT OF THE UNITED STATES

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ABOUAMMO *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 25–5146. Argued March 30, 2026—Decided June 11, 2026

This case presents the question whether a defendant charged with violating 18 U. S. C. §1519—which makes it a crime to knowingly falsify a document with the intent to obstruct a federal investigation—must be tried in the district where the falsification occurred, or whether he may alternatively be tried in the district where the federal investigation was located.

While employed by Twitter at its San Francisco office, petitioner Ahmad Abouammo provided confidential information to a high-level Saudi official about Saudi dissidents posting on the company's platform. In exchange, the official wired Abouammo $300,000. Around the same time, Abouammo left Twitter and relocated to Seattle, where he started a social-media consulting business. Two San Francisco-based FBI agents, who were investigating unauthorized disclosures of Twitter account information, later flew to Seattle to interview Abouammo at his home. During the interview, Abouammo denied giving the Saudi official confidential information, claiming that the payments were for consulting work. When the agents asked for supporting documentation, Abouammo went upstairs, created a fake invoice, and emailed it to one of the agents. Back in San Francisco, the agents discovered from the emailed document's date-and-time metadata what Abouammo had just done.

Abouammo was indicted in the Northern District of California for falsifying a record under §1519. He moved to dismiss the charge for improper venue, arguing that he could be tried only where the alleged falsification occurred. The District Court denied the motion, finding venue also proper in the place where the FBI investigation was located, and a jury convicted Abouammo. The Ninth Circuit affirmed, reasoning that §1519's intent requirement—"with the intent" to "obstruct" an

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investigation—made the "contemplated effects" of the falsification part of the "essential conduct" of the offense, thereby permitting trial "where the investigation" the defendant "intended to stymie [was] ongoing or contemplated." 122 F. 4th 1072, 1092–1093.

Held: A defendant charged with violating §1519 must be tried in the district where the falsification occurred; he cannot be tried in a different district where the investigation was located because no "conduct constituting the offense" happened there.

The Constitution twice safeguards a defendant's venue right: Article III instructs that "Trial of all Crimes" shall "be held in the State where the Crimes shall have been committed," §2, cl. 3, and the Sixth Amendment entitles criminal defendants to a jury "of the State and district wherein the crime shall have been committed." To implement that constitutional rule, courts generally determine the location of the offense's "essential conduct elements" by identifying "the conduct constituting the offense"—the things a defendant must do to violate the statute—and then ascertaining the place where those criminal acts occurred. *United States* v. *Rodriguez-Moreno*, 526 U. S. 275, 279–280.

Under this framework, the venue for trying a §1519 offense must be where the document's falsification happened—which here was in Seattle. Section 1519 imposes criminal liability on a person who knowingly "falsifies" a "record [or] document" "with the intent to impede [or] obstruct" a federal investigation. The only prohibited act is the falsification of a document; once a person has committed that act with the requisite intent, he need do nothing more to violate the law. Because the only proscribed conduct is falsification, venue must be where falsification occurred.

Contrary to the Ninth Circuit's view, §1519's special intent provision does not lead to a different result. This Court has never looked to a statute's *mens rea* elements in considering venue, nor would it make much sense to do so. A falsification with the intent to obstruct an investigation occurs at the same place as a falsification without that intent—which is to say, at the place of falsification. The *means rea* requirement thus adds nothing to the conduct-focused analysis. The Ninth Circuit treated the "contemplated effects" of the falsification as part of §1519's "essential conduct" elements, 122 F. 4th, at 1092, but that is not so: The statute's concern with effects is instead confined to the defendant's *mens rea*. Section 1519, unlike laws barring actual obstruction, does not require that falsifying a document have any impact on an investigation. Whatever obstructive effects Abouammo's false invoice may have had in northern California, they were not elements of his crime and cannot figure in determining where his crime was committed.

The Government, for its part, declares §1519 an "inchoate offense,"

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with some integral relationship to another (though unspecified) obstruction-of-justice crime. But §1519 is an independent crime, not an inchoate offense. Inchoate offenses are necessarily "[a] step toward the commission of another crime." Black's Law Dictionary 1297. But a person can commit a §1519 crime without taking any steps toward another crime—for example, by falsifying a document with the requisite intent and then putting the document away in a drawer without ever using it to obstruct an investigation. Rather than define an inchoate offense tethered to a crime of actual obstruction, §1519 spells out a standalone crime for falsifying documents. Accordingly, venue for it must be based on the conduct that §1519 itself proscribes, not on the conduct some other law does.

The trial for falsifying a document must take place where the defendant falsified the document. Here that was in Seattle—in venue terms, the Western District of Washington. The trial should not have occurred in the Northern District of California because no "conduct constituting the offense" happened in that location. Pp. 3–9.

122 F. 4th 1072, reversed and remanded.

KAGAN, J., delivered the opinion for a unanimous Court.